

TENTATIVE RULINGS

DEPT. CM7

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TENTATIVE RULING

Date: 07/15/2026

Case #	Case Name	Tentative
01348724	Rivas –Probate	TENTATIVE RULING Case: Rivas – Probate 01348724 Calendar No.: 1 Date: 07/15/2026 MOTION TO REQUEST ABATEMENT OF ALL PROCEEDINGS (ROA 520) Pursuant to Probate Code section 854, Petitioner Sarai Mejia Villa ("Petitioner") moves for an order to abate all proceedings currently pending in the instant Probate Action until the outcome of the Civil Action she commenced on 3/21/23 (O.C.S.C. Case No. 30-2023-01314626). <u>Abatement of All Pending Proceedings</u> Probate Code section 854 provides as follows: If a civil action is pending with respect to the subject matter of a petition filed pursuant to this chapter this part¹ and jurisdiction has been obtained in the court where the civil action is pending prior to the filing of the petition, upon request of any party to the civil action, the court shall abate the petition until the conclusion of the civil action. This section shall not apply if the court finds that the civil action was filed for the purpose of delay.

Footnote 1. So in enrolled bill.

(Emphasis added.)

Probate Code section 854 is only applicable to petitions brought under Part 19 of Division 2 of the Probate Code (i.e., 850 Petitions.) (*Bellows v. Bellows* (2011) 196 Cal.App.4th 505, 512-513.) Thus, Petitioner's request to abate **all currently pending proceedings** must be **denied**.

In the moving papers, Petitioner argues that the outcome of the Civil Action will affect the final distribution of Decedent's estate. (See e.g., ROA 520, Mot., 3:19-22.) Even if such assertion is true, Probate Code section 854 cannot be used to abate the administration of an estate. Nonetheless, a final distribution cannot be ordered until "the estate is in a condition to be closed." (Prob. Code § 11640.) Arguably, the estate will not be in a condition to be closed until the resolution of the Civil Action and/or the 850 Petition.

Abatement of 850 Petition

The court's records reflect only one 850 Petition pending. (ROA 512.)

The moving papers are supported by a single declaration that states only that counsel met and conferred before filing the motion. The moving papers do not describe the causes of action pending in the Civil Action or establish that such causes of action relate to the subject matter of the 850 Petition. Instead, the moving papers conclusively state that Petitioner's "Marvin Claim [in the Civil Action] is directly probative, related to, and controlling to issues within the 850 Petition." (ROA 520, Mot., 3:19-20.)

A trial court has "no obligation to undertake its own search of the record 'backwards and forwards to try to figure out how the law applies to the facts' of the case. [Citations.] Rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide." (*Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934.)

Though not obligated to do so, the court did locate and read the Third Amended Complaint pending in the Civil Action (ROA 283) (the "TAC"). On its own motion, the court takes judicial notice of the TAC.

		In the Civil Action, Petitioner is seeking to establish her fifty percent (50%) ownership of specified assets that were allegedly held in Decedent's name until Respondent interfered. In the instant Probate Action, Petitioner is seeking to establish that Decedent's estate has a fifty percent (50%) ownership in the same assets. Both actions involve the same real and personal properties, and both actions necessitate a determination that these assets belonged to Decedent (as opposed to his brother) and Petitioner. Thus, the court finds that the Civil Action concerns the same subject matter as the 850 Petition. Accordingly, the court must stay the 850 Petition (ROA 512) pursuant to Probate Code section 584. <u>Scope of Abatement of 850 Petition</u> The 850 Petition includes several additional causes of action that are not made pursuant to Section 850. Probate Code section 855 states, "An action brought under this party may include claims, causes of action, or matters that are normally raised in a civil action to the extent that the matters are related factually to the subject matter of a petition filed under this part." Thus, to the extent the additional causes of action in the 850 Petition (ROA 512) are related factually, such causes of action may also be stayed pursuant to Probate Code section 854. Counsel should be prepared to discuss whether all causes of action in the 850 Petition should be abated or only certain causes of action. Alternatively, counsel may request time to further brief such issue.
01421574	Pendleton - Trust	TENTATIVE RULING Case: Pendleton - Trust 01421574 Calendar No.: 2 Date: 07/15/2026 MOTION TO COMPEL FURTHER RESPONSE TO FORM INTERROGATORY 17.1 (ROA 49) Respondent Cynthia L. Russell ("Respondent") moves to compel Petitioner Jacquelyn Pendleton by and through her Power of Attorney Mary E. Mills, ("Petitioner") to further respond to Form Interrogatory 17.1 as it pertains to Requests